

Court No. - 37

Case :- WRIT - C No. - 44598 of 2017

Petitioner :- Punit Kumar Gupta

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ajay Sengar

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Rajiv Lochan Mehrotra,J.

Heard learned counsel for the petitioner and Sri Baleshwar Chaturvedi, learned counsel for the respondent/Electricity Department.

After the matter was heard learned counsel for the petitioner prays that the petitioner is prepared to deposit the amount sought to be recovered and therefore some installments may be provided for.

Sri Baleshwar Chaturvedi, learned counsel for the respondent/Electricity Department has invited the attention of the Court to Clause 6.14 of the U.P. Electricity Supply Code, 2005 where the Executive Engineer has been conferred with such powers to extend any such benefits for making payments in instalments. If the petitioner files a certified copy of this order before the Executive Engineer concerned, the Executive Engineer shall within two weeks pass an appropriate order providing for such installments that may be necessary on the facts of the present case. The recovery proceedings shall be subject to any orders being passed by the Executive Engineer provided a copy of this order is filed before the Executive Engineer with one week.

With petition is disposed off with the said directions.

Order Date :- 20.9.2017

R./